

he says. Dubey also questions Truecaller's ability to actually battle scams. "I'm not sure how effective it is in battling scams because criminals don't use a number for more than a week, and by the time it catches them, the number is not in use. To some extent, it is useful in the sense that the app gives detailed graphical analysis of that number, making it easier for a user to identify a scam pattern," he adds.

THE PRIVACY QUESTION

The Supreme Court had ruled that the right to privacy is a fundamental right under Articles 14, 19 and 21 of the Constitution in the case of *K.S. Puttaswamy vs Union of India*, in 2017. This piece of information coexists with the fact that India still does not have a proper data protection law. This legal vacuum has left Indians vulnerable to activities like monitoring, surveillance and monetisation of user data from various quarters. "Currently, India is in a grey zone because we don't have a data protection law. As of now, there's no stopping anyone from copying, monetising, using, forwarding and sharing data with others. There are rules under the IT Act but they are hardly ever implemented," says cybersecurity expert and Supreme Court advocate Pavan Duggal.

Experts argue that a majority of Truecaller's datasets have been collected without the consent of its users. "It will be a gross violation of my privacy if my data is used for monetisation purposes. I can go ahead and tell the government to stop apps like Truecaller which are harnessing my data. These numbers are taken from the devices themselves by the app. That's a violation of both the IT Act, 2000 and the right to privacy. We haven't yet woken up to the power of our data, and that is the reason we don't go after such things. It's only a question of time before these things get regulated," Duggal adds.

Mamedì says that Truecaller is and will continue to be fully compliant with all Indian regulations, including the data protection law when it is in place. "We capture only the data needed for the service to function and nothing more. We are compliant with data privacy laws and stand ready to comply with other data protection laws anywhere in the world," he adds. Incidentally, Truecaller has been in the soup for data security issues a number of times in the past. In 2020, a data breach at Truecaller—that led to the personal details of 47.5 million Indians being sold

on the dark web for around \$1,000 (₹76,000)—was reported by US cyber intelligence firm Cyble Inc. It contained details like the user's name, gender, age, city, telecom service provider, Facebook account, email id and mobile number. In the same year, the Indian Army banned its personnel from using 89 apps including Facebook, TikTok, Truecaller, Instagram, Tinder, PUBG, etc. owing to national security risks.

Experts have also called out Truecaller's access to user's text messages, which can potentially give hackers access to sensitive financial information in case of a breach. Incidentally, in 2019, an SMS was automatically sent out without users' consent to ICICI Bank due to a 'bug' in the app. "Due to this anomaly, some of our users automatically initiated the creation of a payments profile that they never requested for," Mamedì later wrote on the Truecaller website. He apologised and took quick action to delete the accounts of affected users.

Moreover, a recent petition in the Bombay High Court alleged that Truecaller collects its users' data and shares it with its partners without their consent, and then dumps the liability on the users. Meanwhile, Truecaller in a statement said that the PIL's claim that it shares data with certain third parties to benefit from them financially, "is false information". The company has repeatedly denied any exploitation of its systems or processes. "At Truecaller, we believe that a strong, robust data breach response plan is crucial. We have a large, multi-disciplinary team working to ensure that the data we capture is safe with us," says Mamedì.

The app was also at loggerheads with tech giant Google, over its decision to disallow third-party call-recording apps on the Play Store. As per a directive from Google, starting May 11, 2022, it has banned all such apps on the Play Store. Following this, Truecaller had to drop its call-recording feature across the globe. According to Duggal, companies like Truecaller look for locations where there's either minimum or no protection of data. "India is seeing a very unique policy vacuum. India doesn't have a dedicated law on data protection. We also don't have a dedicated law on privacy, or on cybersecurity. Absence of these regulations is a fertile field for any company," he adds. While Truecaller has proactively localised all Indian citizens' data within servers in India, it will hardly be helpful in case of a potential data breach.